

103	Anaheim Chamber of Commerce vs. Anaheim/Orange County Visitor & Convention Bureau 2025-01499697	Motion to Appear Pro Hac Vice Plaintiff Anaheim Chamber of Commerce’s application for pro hac vice admission of attorney Jonathan Ibsen is GRANTED. On or before the anniversary of the date of this order, if this attorney remains counsel for the moving party, the moving party must pay an annual renewal fee of five hundred dollars (\$500) for each year that the attorney maintains pro hac vice status in this case. (Gov. Code, § 70617, subd. (e)(2).) Moving party shall provide notice.
104	Andrawes Husary vs. Shahidi 2025-01487294	Motion to Appear Pro Hac Vice Consistent with the Court’s previous 5/5/2026 order staying all case deadlines and future hearings for a period of 45 days (ROA #75), Specially Appearing Defendants John Shahidi; Nelk, Inc.; Metacard, LLC; Nelk USA, Inc.; and Kyle Forgeard’s application for pro hac vice admission of attorney Brian M. French is CONTINUED to 07/02/2026 at 02:00 PM in Department CX102. Clerk to give notice.
105	Bojorquez vs. Hood Pacific Contractors, Inc. 2025-01492976	1. Petition to Compel Arbitration 2. Case Management Conference Defendant Hood Pacific Contractors, Inc.’s motion to compel arbitration is GRANTED. (Code Civ. Proc. [CCP], § 1281.2; see also ROA #25 [Hood Decl.], passim; ROA #31 [Rocha Decl.], Exhs. A-C.) The Court notes that Plaintiff Jose Bojorquez filed a notice of non-opposition to the motion. (ROA #56.) Plaintiff “does not oppose entry of an order compelling arbitration of any claims the Court determines are subject to arbitration,” but Plaintiff “requests that the Court either (1) decline to dismiss the operative complaint and stay the action at this time, or (2) defer any determination regarding dismissal and/or a stay until after the Court has ruled on Plaintiff’s pending Motion for Leave to File a Second Amended Complaint currently set for hearing on July 23, 2026.” (<i>Id.</i>) The Court finds that Plaintiff’s notice of non-opposition concedes that the arbitration agreement exists, as Plaintiff presents no arguments or evidence

otherwise. Accordingly, the Court **ORDERS** that Plaintiff must be compelled to arbitrate his individual claims against Defendant.

The parties' arbitration agreement also includes a class waiver: "THE PARTIES AGREE THAT EACH MAY BRING CLAIMS AGAINST THE OTHER ONLY IN THEIR INDIVIDUAL CAPACITY, AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS AND/OR COLLECTIVE PROCEEDING." (Rocha Decl., Exh. A [Arbitration Agreement], p. 93, ¶ 8, **bolding omitted.**)

Plaintiff does not contend that this class waiver is unenforceable. Nor does Plaintiff cite any authority requiring the Court *not* to dismiss Plaintiff's class claims when there is an enforceable class waiver. Accordingly, Plaintiff's class claims against Defendant are **DISMISSED**.

Further, CCP section 1281.4 provides, in relevant part:

If a court . . . has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.

Defendant's notice of motion and motion seeks a stay of "the remaining PAGA claim pending completion of the arbitration." (ROA #33 [Not. of Mot. & Mot.], p. 2; see also ROA #23 [Mot. P&A], p. 14 ["Because Plaintiff's individual claims must be ordered to arbitration, the Court should dismiss the class claims which have been waived pursuant to the parties' valid and enforceable Arbitration Agreement, leaving only the PAGA claims remaining which the Court should stay until the arbitration proceedings are completed."]; ROA #58 [Reply], p. 1 [Defendant's motion seeks a "stay [of] the remaining PAGA claim pending completion of arbitration"].)

Plaintiff cites no authority to support his contention that the Court should or may refuse to impose the requested stay pursuant to CCP section 1281.4 once the Court orders Plaintiff to arbitrate his individual claims against Defendant. Accordingly, Plaintiff's remaining PAGA claim against Defendant is **STAYED** until the arbitration is had pursuant to CCP section 1281.4.

An ADR review hearing is scheduled for December 3, 2026, at 9:30AM in Department CX102. The parties shall submit a joint status report 10 days in advance of the hearing.

The current CMC is vacated.

Defendant shall give notice.